government on the first ground of challenge. To ignore that thousands of innocents were losing their lives to terrorism would be to adopt 'an ostrich like attitude completely ignoring the impending danger'.[19] TADA was directed towards addressing activities that threatened the security and integrity of the country as a whole rather than public order in any particular state. Therefore, it was within Parliament's legislative authority to enact TADA, the court said.

The second basis of challenge was more contentious. Those challenging TADA argued that many of its provisions were especially draconian and diminished safeguards available under the general criminal law. For example, as mentioned earlier, confessions made to police officers (which are otherwise not admissible as evidence) were made admissible in TADA cases, so long as those confessions were made to officers of sufficient seniority. The rule against admission of confessional evidence procured in police custody was an essential safeguard in the context of the long history of custodial torture in India. Even if the rule did not deter custodial torture and forced confessions, at least it did not further incentivize them. The petitioners therefore argued that Section 15 of TADA, which departed from this safeguard, violated the fundamental right to equality (by denying a safeguard to terrorist suspects that others were entitled to under the law) and life (by incentivizing custodial torture).

Justice Pandian's decision on this question was a judgement of two halves. In the first, he powerfully condemned custodial torture and the practice of securing confessions by coercion. Drawing upon their experiences as lawyers and judges, he and his colleagues lamented that they 'frequently dealt with cases of atrocity and brutality practiced by some overzealous police officers' who resorted to 'inhuman, barbaric, archaic and drastic' measures.[20] The court knew only too well that these measures were taken with the view of collecting evidence 'by hook or by crook'.[21] The decision condemned these 'degrading and despicable'[22] practices adopted by some police officers.

These observations should have made the conclusion inevitable. The court ought to have struck down Section 15 on the grounds that it denied